

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tahreem Khan	Team: Squad #06	CCRB Case #: 202207750	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 07/03/2022 4:20 AM	Location of Incident: 7th Precinct stationhouse	18 Mo. SOL 1/3/2024	Precinct: 07		
Date/Time CV Reported Mon, 08/15/2022 2:10 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/15/2022 2:10 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SGT Maris Garcia	00962	949005	007 PCT
2. PO Michael Sisinni	17712	959249	007 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Konstantin Kiselev	14302	971508	007 PCT
2. PO Austin Black	27192	971833	007 PCT
3. PO Johnmin Wangbai	10280	972308	007 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Maris Garcia	Off. Language: Sergeant Maris Garcia made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	
B . SGT Maris Garcia	Discourtesy: Sergeant Maris Garcia spoke discourteously to § 87(2)(b)	
C . PO Michael Sisinni	Force: Police Officer Michael Sisinni used physical force against § 87(2)(b)	
D . SGT Maris Garcia	Abuse: Sergeant Maris Garcia threatened to remove § 87(2)(b) to the hospital.	
E . SGT Maris Garcia	Off. Language: Sergeant Maris Garcia made offensive remarks to § 87(2)(b) based on her perceived mental status.	
F . SGT Maris Garcia	Off. Language: Sergeant Maris Garcia made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	
G . SGT Maris Garcia	Off. Language: Sergeant Maris Garcia made remarks to § 87(2)(b) based upon race.	
H . SGT Maris Garcia	Discourtesy: Sergeant Maris Garcia spoke discourteously to § 87(2)(b)	

Case Summary

On August 15, 2022, § 87(2)(b) filed this complaint with CCRB on the phone. On November 15, 2022, this case was split from CCRB case number § 87(2)(b).

On July 3, 2022, at approximately 4:20 a.m., an unknown individual [identified through BWC as § 87(2)(b)] was brought into the 7th Precinct stationhouse and presented in front of Sergeant Maris Garcia, who was the desk officer. § 87(2)(b) was cursing at Sgt. Garcia, stating "Suck my dick" along with other expletives. Sgt. Maris responded, "You don't have one" and "watch your fucking mouth". (**Allegation A: Offensive Language**, § 87(2)(g) (**Allegation B: Discourtesy**, § 87(2)(g) § 87(2)(b) was arrested and brought into the 7th Precinct stationhouse after this male. Police Officer Michael Sisinni stood with § 87(2)(b) and allegedly pulled § 87(2)(b) hair (**Allegation C: Force**, § 87(2)(g) Sgt. Garcia told § 87(2)(b) that she would be going to the hospital because she was acting "crazy" (**Allegation D: Abuse of Authority**, § 87(2)(g) **Allegation E: Offensive Language**, § 87(2)(g) and within **Allegation H**). § 87(2)(b) told Sgt. Garcia to suck her "dick." In response, Sgt. Garcia asked § 87(2)(b) if she had a "dick" several times (**Allegation F: Offensive Language**, § 87(2)(g) and within **Allegation H**). Finally, § 87(2)(b) referred to Sgt. Garcia as "Nigga" several times. Sgt. Garcia responded by stating, "I am not your nigger. I am not your nigger" (**Allegation G: Offensive Language**, § 87(2)(g) **Allegation H: Discourtesy**, § 87(2)(g).

§ 87(2)(b) was arrested during this incident for driving while intoxicated, leaving the scene an incident without reporting property damage, and refusing to take a breath test. § 87(2)(b) was arrested during this incident for robbery in the second degree, criminal mischief in the second degree, assaulting a police officer/fireman/EMT, resisting arrest, obstructing governmental administration in the second degree, and disorderly conduct.

On November 30, 2022, NYPD Legal provided 40 body-worn camera (BWC) videos related to this incident (**Board Review 1 – 3**).

Findings and Recommendations

Allegation (A) Offensive Language: Sergeant Maris Garcia made remarks to § 87(2)(b) based upon the gender § 87(2)(b)

Allegation (B) Discourtesy: Sergeant Maris Garcia spoke discourteously to § 87(2)(b)

Sergeant Jaison Lopez's BWC is 17:21 long (**Board Review 2**). Any timestamps referred to are those based on the media player. It appears that this BWC has been misidentified and belongs to Sgt. Maris Garcia. At 02:37, Sgt. Garcia asks if § 87(2)(b) wants her to send him to the hospital. § 87(2)(b) continues to yell and curse at the officers, calling them racist and saying that they better not be there the next day. § 87(2)(b) then yells for the officers to take him to court and to "suck my dick." § 87(2)(b) goes on to state, "I don't give a fuck about none of that. That's what lawyers is for." At 03:20, Sgt. Garcia states, "I don't care about your lawyer. I don't care about you either." § 87(2)(b) moves his body forward and yells at Sgt. Garcia, "Suck my dick!" Sgt. Garcia responds, "You don't have one! Relax!" Sgt. Garcia then instructs her officers to place § 87(2)(b) back into the cells. At 03:53, Sgt. Garcia places the BWC back on her person and goes to the cell area. At 03:57, § 87(2)(b) states, "Fucking bitch. Suck my dick. I want you to tase me. Tase me. You fucking whore suck my dick." At 04:04, Sgt. Garcia states, "Watch your fucking mouth." § 87(2)(b) repeats "Suck my dick several times." Sgt. Garcia points at her chevrons and tells § 87(2)(b) to "Remember who I am."

These allegations were not raised in sworn statements, but rather seen on BWC.

§ 87(2)(b) was not interviewed as he was unavailable.

Sgt. Garcia (**Board Review 5**) testified that § 87(2)(b) stood in front of the desk and was acting out, screaming, and was not listening to anything the officers were trying to say. Sgt. Garcia was trying to get § 87(2)(b) name and information so that it can be noted in the book, but § 87(2)(b) continued to threatening officers, including Sgt. Garcia, saying “Suck my dick,” and “I’m gonna come after you.” Sgt. Garcia told § 87(2)(b) to calm down and at some point, when he said, “Suck my dick,” Sgt. Garcia told § 87(2)(b) “You don’t have one,” in response. Sgt. Garcia stated that she was not raised in such a manner and was offended by § 87(2)(b) statement. As such, she reacted to being told by a stranger to “suck [his] dick,” and reacted by saying that he did not have one. There was no other reason for making that statement. Sgt. Garcia then told § 87(2)(b) “Shut your fucking mouth,” after he told Sgt. Garcia several times to “suck [his] dick.” Sgt. Garcia stated that she used the word “fucking,” as a response to § 87(2)(b) telling her several times to “suck [his] dick.” Sgt. Garcia did not have any other reason for using the word fucking.

Officers are prohibited from using disrespectful remarks regarding ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability NYPD Patrol Guide Procedure 203-10 (Board Review 8). Officers should treat every citizen with courtesy, professionalism, and respect as per NYPD Patrol Guide Procedure 200-02 (Board Review 9). The use of discourteous language by an officer may be justified when attempting to gain compliance with commands given while attempting to maintain order during a stressful street encounter NYPD Disciplinary Case #79627/04 (Board Review 10).

This allegation was not raised in a sworn statement but rather seen on BWC. After § 87(2)(b) stated “Suck [his] dick,” called Sgt. Garcia a “whore,” and called her a “bitch,” Sgt. Garcia was offended at the comments. She then told § 87(2)(b) that he does “not have one,” and told him to watch his “fucking mouth.” § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (C) Force: Police Officer Michael Sisinni used physical force against § 87(2)(b)

Allegation (D) Abuse of Authority: Sergeant Maris Garcia threatened to remove § 87(2)(b) to the hospital.

Allegation (E) Offensive Language: Sergeant Maris Garcia made offensive remarks to § 87(2)(b) based on her perceived mental status.

Allegation (F) Offensive Language: Sergeant Maris Garcia made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

Allegation (G) Offensive Language: Sergeant Maris Garcia made remarks to § 87(2)(b) based upon race.

Allegation (H) Discourtesy: Sergeant Maris Garcia spoke discourteously to § 87(2)(b)

Police Officer Yudelka Rodriguez's BWC is 12:46 long (**Board Review 3**). At 06:59, PO Sisinni places his right foot on the inner part of § 87(2)(b) left foot while PO Rodriguez places her left foot on the inner part of § 87(2)(b) right foot and moves it outwards so that § 87(2)(b) legs spread a little wider than the width of her shoulders. At 07:04, as PO Rodriguez searches in between § 87(2)(b) thighs, § 87(2)(b) bends down towards PO Rodriguez's face, bringing her

face close to PO Rodriguez's and states, "Why you touching my pussy, bitch? You gay?" As § 87(2)(b) continues to scream at PO Rodriguez by bending down and moving her head close to PO Rodriguez's, PO Sisinni places a hand on top of § 87(2)(b) head, moves her head away from PO Rodriguez's face. § 87(2)(b) states that PO Sisinni is pulling her hair, but his hand is on top of her head, palm flat and facing down. PO Sisinni is not seen grabbing § 87(2)(b) ponytail and yanking her head back, as alleged. § 87(2)(b) yells several times that PO Sisinni is pulling her hair. At 07:20, Sgt. Garcia yells, "Listen! If you don't calm down, you're going to the hospital." § 87(2)(b) repeats several times, "Suck my dick!" Sgt. Garcia asks, § 87(2)(b) six times, "You have a dick?" At 07:31, Sgt. Garcia tells § 87(2)(b) twice that she is going to the hospital. When § 87(2)(b) asks why, Sgt. Garcia states, "Because you're acting crazy." § 87(2)(b) continues to call Sgt. Garcia a bitch and tells her to suck her dick. At 08:02, Sgt. Garcia states, "You don't even have one, or do you?" § 87(2)(b) states, "If I had one, you would come suck it, right? That's why you so thirsty, you dumb bitch." § 87(2)(b) continues to yell profanities at the officers and PO Rodriguez advises Sgt. Garcia to ignore § 87(2)(b) continues to yell at all the officers. At 09:16, Sgt. Garcia states that she thinks § 87(2)(b) is going to go straight to the hospital. § 87(2)(b) responds, "Straight to the hospital for what, nigga? I'm not bugging. I'm not suicidal, and I decline." Sgt. Garcia responds, "I am not your nigger. I am not your nigger." § 87(2)(b) continues to scream and threaten to slap Sgt. Garcia when she comes back.

Police Officer Taylor Perez's second BWC (**Board Review 14**) is 22:01 long. At 19:42, § 87(2)(b) friend is placed into the same cell as her and at 20:31, the handcuffs are removed from § 87(2)(b).

§ 87(2)(b) (**Board Review 4**) testified that she was arrested and brought into the 7th Precinct between 4 a.m. and 4:45 a.m. She stood in the front where civilian property is vouchered and was being held by PO Sisinni and another officer when PO Sisinni pulled § 87(2)(b) head back by her hair. As a result of having her hair pulled, § 87(2)(b) head went back all the way. § 87(2)(b) did not raise any other allegations.

§ 87(2)(g)

Sgt. Garcia (**Board Review 5**) testified that § 87(2)(b) was brought into the stationhouse with two of her friends after robbing a restaurant. When § 87(2)(b) arrived at the station, she loudly yelled and cursed. § 87(2)(b) was also spitting while she spoke. § 87(2)(b) was drawing attention to the front of the stationhouse as she told the officers that she did not like the precinct, to "suck [her] dick," that she was going to come after the officers, and "catch me outside"—threatening the officers. § 87(2)(b) appeared to be intoxicated as she smelled of alcohol, despite standing a distance away from the desk, was spitting all over herself, and her eyes were glassy. § 87(2)(b) appeared to be intoxicated, was not cooperating with the officer's commands to the point where they could not identify her and was threatening the officers. § 87(2)(b) was going to be placed in a cell with her two friends, which would have been a safety hazard if the officers could not search her. Further, § 87(2)(b) had strings in her dress, which are not allowed in the cells. Based on the type of dress that § 87(2)(b) was wearing, if the strings were removed, then the dress would have fallen off and the officers did not have anything to give her to wear. Based on all of these reasons, Sgt. Garcia believed that by sending § 87(2)(b) to this hospital, she would be provided with a hospital gown from there as well. Sgt. Garcia also stated to § 87(2)(b) that she did not know whether § 87(2)(b) had a "dick." Sgt. Garcia asked § 87(2)(b) "Do you have a dick?" Sgt. Garcia asked this for clarification as Sgt. Garcia was unaware if § 87(2)(b) had a "dick." There was no other reason for Sgt. Garcia to ask this question of § 87(2)(b). Sgt. Garcia told § 87(2)(b) that she was acting "crazy." Sgt. Garcia made this statement based on § 87(2)(b) acting irrational as she was intoxicated, acting erratic as she was not making sense, she was not listening to

commands issued by officers, and she was yelling. Sgt. Garcia's use of the word "crazy" was not directed towards § 87(2)(b) perceived mental health. § 87(2)(b) used the word "nigga" when speaking to Sgt. Garcia. Sgt. Garcia stated that "nigga" is a very disrespectful word and when she repeated the word back and stated, "I am not your nigger," she meant to tell § 87(2)(b) that Sgt. Garcia is not a "nigger" and that she should not be using that word. Sgt. Garcia could not recall whether she used the word "nigga" or "nigger" when repeating to § 87(2)(b). She clarified that her use of the word was not intended with any racial undertones or to be disrespectful to § 87(2)(b). Sgt. Garcia stated that she only repeated back what was said to her in the first place. There was no other reason for Sgt. Garcia using the word "nigga" or "nigger" when speaking to § 87(2)(b).

§ 87(2)(g)

§ 87(2)(b) alleged that PO Sisinni grabbed § 87(2)(b) hair, pulled it back, causing § 87(2)(b) head to move back as well. BWC shows that Sisinni places his hand flat on top of § 87(2)(b) head. § 87(2)(g)

An emotionally disturbed person (EDP) is an individual who appears to be mentally ill or temporarily deranged and is conducting themselves in a way that a police officer reasonably believes is likely to result in serious injury to themselves or others, which is when the individual must be taken into protective custody. Once the EDP has been restrained, the individual should be removed to the hospital in an ambulance NYPD Patrol Guide Procedure 221-13 (Board Review 7).

§ 87(2)(b) did not allege that Sgt. Garcia threatened to send her to the hospital. Rather, this allegation was observed on BWC. § 87(2)(g)

Officers are prohibited from using disrespectful remarks regarding ethnicity, race, religion, gender, gender identity/expression, sexual orientation, or disability NYPD Patrol Guide Procedure 203-10 (Board Review 8). Officers should treat every citizen with courtesy, professionalism, and respect as per NYPD Patrol Guide Procedure 200-02 (Board Review 9). The use of discourteous language by an officer may be justified when attempting to gain compliance with commands given while attempting to maintain order during a stressful street encounter NYPD Disciplinary Case #79627/04 (Board Review 10).

These allegations were captured on BWC, and Sgt. Garcia admitted to using the statements, "You are acting crazy," "Do you have a dick" and "I am not your nigger." § 87(2)(g)

According to the patrol guide, using profanity when speaking to civilians is not

presence of exigent circumstances. § 87(2)(g)

- § 87(2)(b) [REDACTED]
[REDACTED]
[REDACTED]
- Sgt. Garcia has been a member of service for 13 years and has been listed as a subject in six other CCRB complaints and 12 other allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
[REDACTED]
- PO Sisinni § 87(2)(g) [REDACTED] had been a subject in four other CCRB cases and four other allegations, none of which were substantiated.

- This complaint was not suitable for mediation.
- As of March 27, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed regarding this incident (**Board Review 12**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Investigator:	<u>Tahreem Khan</u> Signature	<u>Inv. Tahreem Khan</u> Print Title & Name	<u>October 5, 2023</u> Date
Squad Leader:	<u>Jessica Peña</u> Signature	<u>IM Jessica Peña</u> Print Title & Name	<u>10/5/2023</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date